



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

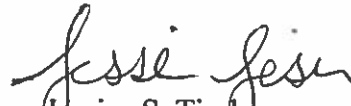
Re: Disciplinary Case No. 2024-31814 / PODS Case No. C-030487 regarding Police Officer Michael Vazquez, Tax No. 968865

Date: March 30, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Police Officer Vazquez issued an unlawful summons to an individual without sufficient legal authority. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Vazquez will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

September 17, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Michael Vazquez, Tax No. 968865
CCRB Disciplinary Case No.: 202304327 (DADS No. 2024-31814)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Training was agreed upon and signed by all parties on August 6, 2025. Assistant Deputy Commissioner Vanessa Facio-Lince endorsed the negotiated settlement on September 9, 2025.

On May 10, 2023, in the vicinity of 901 Westchester Avenue, in the Bronx, two police officers from the 76th Precinct stopped Mr. [REDACTED]'s vehicle, which was parked in a no parking zone. Ms. [REDACTED] and Mr. [REDACTED] were also occupants of the vehicle at the time. Additional Police Officers, including PO Michael Vazquez, approached the vehicle after the stop began.

PO Vazquez, who for the most part was just on scene observing the investigation, assisted in placing Ms. [REDACTED] and Mr. [REDACTED] in handcuffs, and transporting Ms. [REDACTED] to the station. PO Vazquez did not make the determination to handcuff or transport anyone on scene, but he did assist once the decision was finalized by the Sergeant present on scene.

Back at the station, PO Vazquez issued Mr. [REDACTED] two summons: one for aggravated unlicensed operation of a motor vehicle, the second for disorderly conduct.

New York Consolidated Law Service, Penal Law § 240.20 indicates that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof he engages in fighting or in violent, tumultuous or threatening behavior, makes unreasonable noise, uses abusive or obscene language in a public place, obstructs vehicular traffic, congregate with others in a public place and refuses to disperse, or creates hazardous or physically offensive conditions by any act which serves no legitimate purpose.

Comprehensive BWC shows that Mr. [REDACTED] did not engage in any behavior specified by the disorderly conduct subsection of the law during the vehicle stop. Therefore, the investigation determined that it was unreasonable for PO Vazquez to issue him a summons for

disorderly conduct.

For the charge of enforcement action involving abuse of discretion or authority, the mitigated penalty is the forfeiture of ten (10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge of enforcement action involving abuse of discretion or authority. We believe that this downward departure, from the mitigated penalty of the forfeiture of ten (10) vacation days to training, is appropriate given Officer Vazquez's over 5 years of service, his 10 out of 10 rating by his Commanding Officer on his CORD, and his limited involvement with the stop and investigation of this case. Given these factors the CCRB deems it appropriate to deviate from the Matrix and recommends the dismissal of the charge along with Training.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board